

HOUSE No. 2316

The Commonwealth of Massachusetts

PRESENTED BY:

Brian W. Murray

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve parking and pedestrian safety.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>1/14/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>1/27/2025</i>

HOUSE No. 2316

By Representative Murray of Milford, a petition (accompanied by bill, House, No. 2316) of Brian W. Murray and Steven J. Ouellette for legislation to improve parking and pedestrian safety. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2090 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve parking and pedestrian safety.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 22 of the General Laws, as appearing in the 2018 Official Edition,
2 is hereby amended by adding the following section:-

3 Section 23. (a) In a city or town, where municipal on-street angle or perpendicular
4 parking is provided adjacent to a commercial building, there shall be constructed safety
5 appurtenances to: (i) separate parking spaces from the sidewalk or frontage area of the building,
6 (ii) prevent a motor vehicle from erroneously moving onto the sidewalk or other frontage to said
7 building where pedestrian activity is likely to occur, and (iii) prevent a motor vehicle from
8 coming into contact with the building structure. For purposes of this section, the term
9 commercial building shall mean the construction, reconstruction or substantial rehabilitation to
10 enlarge or extend an existing building or structure so as to increase its gross floor area, which is

intended for 1 or more of the following uses: (1) office, (2) retail business or service, (3) institutional or educational, or (4) hotel or motel; provided, that such construction, reconstruction or substantial rehabilitation shall exceed \$1,000,000 in cost.

(b) The owner of a commercial building shall design any enclosed or off-street parking lots or facilities for commercial developments, districts or buildings in a way that maintains a safe walking distance between the denoted parking and the entryway to the building. The owner of a commercial building shall construct safety appurtenances to separate the parking spaces from the walkway and to prevent a motor vehicle from erroneously leaving the parking area and entering the walkway or colliding with the building.

(c) Safety appurtenances shall have the ability to physically stop a motor vehicle from breaching the pedestrian walkway or building frontage and structure. The safety appurtenances may be either a standard structural bollard, retaining wall, landscape planter or any other structural member or frame that will withstand the force of the motor vehicle and prevent it from crashing through to the pedestrian walkway or building frontage and structure.

(d) All safety appurtenances shall be constructed based on local zoning ordinances and bylaws so as to not reduce the sidewalk or the building frontage below the minimum width required for pedestrian accessibility under the architectural access board regulations, promulgated pursuant to section 13A of chapter 22. No municipality or agency shall approve a plan or grant a permit for a commercial development or district unless the plan and proposed development includes the safety appurtenances required pursuant to this section.

(e) The department may issue a waiver for buildings and developments for which unique circumstances make compliance with the requirements of this section an unreasonable burden.

Developers shall submit requests in writing that include an explanation of the unique circumstances and information on alternative safety measures included in the project's design that will protect against vehicle incursions on sidewalks or into buildings. The board shall maintain records of waiver requests and outcomes in a written and publicly-accessible form.

(f) The department shall promulgate rules and regulations relative to the construction, installation and maintenance of such safety appurtenances.

SECTION 2. Said Chapter 22, as so appearing, is hereby amended by adding the following section:-

Section 23A. There shall be a commission known as the Pedestrian Safety Design Advisory Group, referred to in this section as the commission. The commission shall investigate best practices for planning, design, installation, and maintenance of physical safety measures to improve the safety of parking lots and public spaces and shall develop recommendations for rules and regulations governing the installation of bollards, appurtenances, or other physical safety improvements designed to protect sidewalks and other public spaces from vehicle encroachment.

The commission shall consist of 15 members, 1 of whom shall be a member of the house of representatives appointed by the speaker of the house of representatives; 1 member of the house of representatives to be appointed by the minority leader of the house; 1 of whom shall be a member of the senate appointed by the president of the senate; 1 member of the senate to be appointed by the senate minority leader; 1 of whom shall be the secretary of the executive office of public safety and security or a designee, who shall serve as chair; 1 of whom shall be the executive director of the architectural access board or a designee; 1 of whom shall be the

executive director of the Massachusetts School Building Authority or a designee; 1 of whom shall be the secretary of the Department of Transportation or a designee; 1 of whom shall be a professional engineer appointed by the American Council of Engineering Companies of Massachusetts; 1 of whom shall be appointed by the Massachusetts Municipal Association; 1 of whom shall be appointed by appointed by NAIOP Massachusetts; 1 of whom shall be appointed by the Massachusetts chapter of the American Institute of Architects; 1 of whom shall be appointed by The Massachusetts Property Insurance Underwriting Association; 1 of whom shall be appointed by the Associated General Contractors of Massachusetts; and 1 of whom shall be appointed by the New England chapter of the American Public Works Association.

The commission shall submit a report with recommendations for best practices and any draft rules and regulations to the Executive Office of Public Safety and the chairs of the Joint Committee on Transportation by December 31, 2021.

SECTION 3. Section 1 of Chapter 90I of the General Laws, as so appearing, is hereby amended by striking the words “and (v)” and inserting in place thereof the following:-

“(v) ensure that eligible projects comply with the requirements of section 101 of chapter 143 and any additional rules or regulations promulgated by the department; and (vi)”

SECTION 4. Chapter 175 of the General Laws, as so appearing, is hereby amended by adding the following section:-

Section 230. (a) An insurer may consider the installation of safety appurtenances that comply with section 101 of chapter 143 to protect persons located within, or in or on the property of, buildings, or to protect pedestrians, from collisions into those buildings by motor vehicles, on a commercial property parking lot as a safety measure and may provide or offer a discount on the

property owner's insurance covering damage or loss to the covered commercial property, or liability arising out of the ownership, maintenance, or use of the commercial property relative to the reduced risk to the property as a result of installation of the appurtenances.

(b) The commissioner may promulgate rules and regulations to implement the requirements of this section.

SECTION 5. Sections 1, 3, and 4 of this act shall go into effect on July 1, 2022.

SECTION 6. Safety appurtenances required pursuant to this act shall only be required for commercial building permitted after the effective date of this act.